THE PROTOCOL OF 1978 RELATING THERETORESOLUTION MEPC.202(62) - Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY
THE PROTOCOL OF 1978 RELATING THERETO

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SOURCE: MEPC.203(62).pdf
RESOLUTION MEPC.203(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM
SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETORESOLUTION MEPC.203(62)
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AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM
SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO
(Inclusion of regulations on energy efficiency for ships In MAR POL Annex VI)
THE MARINE ENVIRONMENT PROTECTION COMMITIEE,
RECALLING Article 38(a) of the Convention on the International Maritime Organization
concerning the functions of the Marine Environment Protection Committee (the Committee)
conferred upon it by international conventions for the prevention and control of marine
pollution ,
NOTING article 16 of the International Convention for the Prevention of Pollution from
Ships, 1973 (hereinafter referred to as the "1973 Convention"), article VI of the Protocol
of 1978 relating to the International Convention for the Prevention of Pollution from Ships, 1973

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SOURCE: MEPC.203(62).pdf
Ships, 1973 (hereinafter referred to as the "1973 Convention"), article VI of the Protocol
of 1978 relating to the International Convention for the Prevention of Pollution from Ships, 1973
(hereinafter referred to as the "1978 Protocol") and article 4 of the Protocol of 1997 to amend
the International Convention for the Prevention of Pollution from Ships , 1973, as modified by
the Protocol of 1978 relating thereto (hereinafter referred to as the "1997 Protocol"), which
together specify the amendment procedure of the 1997 Protocol and confer upon the
appropriate body of the Organization the function of considering and adopting amendments
to the 1973 Convention , as modified by the 1978 and 1997 Protocols,
NOTING ALSO that, by the 1997 Protocol, Annex VI entitled Regulations for the Prevention
of Air Pollution from Ships was added to the 1973 Convention (hereinafter referred to as
"Annex VI"),
NOTING FURTHER that the revised Annex VI was adopted by resolution MEPC.176(58) and
entered into force on 1 July 2010,
RECOGNIZING that the amendments to Annex VI and inclusion of a new chapter 4 intend to

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SOURCE: MEPC.203(62).pdf
"Annex VI"),
NOTING FURTHER that the revised Annex VI was adopted by resolution MEPC.176(58) and
entered into force on 1 July 2010,
RECOGNIZING that the amendments to Annex VI and inclusion of a new chapter 4 intend to
improve energy efficiency for ships through a set of technical performance standards, which
would result in reduction of emissions of any substances that originate from fuel oil and its

combustion process, including those already controlled by Annex VI,
RECOGNIZING ALSO that adoption of the amendments to Annex VI in no way prejudges the negotiations held in other international fora, such as the United Nations Framework Convention on Climate Change (UN FCC C), nor affect the positions of the countries that participate in such negotiations,
HAVING CONSIDERED draft amendments to the revised Annex VI for inclusion of regulations on energy efficiency for ships,
1. ADOPTS , in accordance with article 16(2)(d) of the 1973 Convention , the amendments to Annex VI, the text of which is set out in the annex to the present resolution;
RESOLUTION MEPC.203(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE

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SOURCE: MEPC.203(62).pdf
amendments to Annex VI, the text of which is set out in the annex to the present resolution;
RESOLUTION MEPC.203(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 2 -
2. DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention , that the amendments shall be deemed to have been accepted on 1 July 2012, unless prior to that date, not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50 per cent of the gross tonnage of the World's merchant fleet, have communicated to the Organization their objection to the amendments;
3. INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of the 1973 Convention, the said amendments shall enter into force on 1 January 2013 upon their acceptance in accordance with paragraph 2 above;
4. REQUESTS the Secretary-General , in conformity with article 16(2)(e) of the 1973 Convention, to transmit to all Parties to the 1973 Convention , as modified by

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SOURCE: MEPC.203(62).pdf
their acceptance in accordance with paragraph 2 above;
4. REQUESTS the Secretary-General , in conformity with article 16(2)(e) of the 1973 Convention, to transmit to all Parties to the 1973 Convention , as modified by the 1978 and 1997 Protocols, certified copies of the present resolution and the text of the amendments contained in the Annex;
5. REQUESTS FURTHER the Secretary-General to transmit to the Members of the Organization which are not Parties to the 1973 Convention, as modified by the 1978 and 1997 Protocols, copies of the present resolution and its Annex; and
6. INVITES the Parties to MARPOL Annex VI and other Member Governments to bring the amendments to MARPOL Annex VI to the attention of shipowners , ship operators, shipbuilders, ship designers, marine diesel engine and equipment manufacturers as well as any other interested groups.
RESOLUTION MEPC.203(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 3 -
ANNEX

AMENDMENTS TO MARPOL ANNEX VI ON REGULATIONS FOR THE PREVENTION OF

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SOURCE: MEPC.203(62).pdf
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 3 -
ANNEX
AMENDMENTS TO MARPOL ANNEX VI ON REGULATIONS FOR THE PREVENTION OF AIR POLLUTION FROM SHIPS BY INCLUSION OF NEW REGULATIONS ON ENERGY EFFICIENCY FOR SHIPS
Regulation 1
Application
CHAPTER 1
GENERAL
1 The regulation is amended as follows:
"The provisions of this Annex shall apply to all ships, except where expressly provided otherwise in regulations 3, 5, 6, 13, 15, 16, 18, 19,20,21 and 22 of this Annex."
Regulation 2
Oefinitions
2 Paragraph 21 is amended as follows:
"21 Tanker in relation to regulation 15 of this Annex means an oil tanker as defined in regulation 1 of Annex I of the present Convention or a chemical tanker as defined in regulation 1 of Annex" of the present Convention."
3 The following is added at the end of regulation 2:
"For the purpose of chapter 4 of this Annex:
22 "Existing ship" means a ship which is not a new ship.
23 "New ship" means a ship:
.1 for which the building contract is placed on or after 1 January 2013; or
.2 in the absence of a building contract, the keel of which is laid or

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SOURCE: MEPC.203(62).pdf
22 "Existing ship" means a ship which is not a new ship.
23 "New ship" means a ship:
.1 for which the building contract is placed on or after 1 January 2013; or
.2 in the absence of a building contract, the keel of which is laid or which is at a similar stage of construction on or after 1 July 2013; or
.3 the delivery of which is on or after 1 July 2015.
RESOLUTION MEPC.203(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 4 -
24 "Major Conversion" means in relation to chapter 4 of this Annex a conversion of a ship:
.1 which substantially alters the dimensions, carrying capacity or engine power of the ship; or
.2 which changes the type of the ship; or

.3 the intent of which in the opinion of the Administration is
substantially to prolong the life of the ship; or
.4 which otherwise so alters the ship that, if it were a new ship,
it would become subject to relevant provisions of the present
Convention not applicable to it as an existing ship; or

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SOURCE: MEPC.203(62).pdf
substantially to prolong the life of the ship; or
.4 which otherwise so alters the ship that, if it were a new ship,
it would become subject to relevant provisions of the present
Convention not applicable to it as an existing ship; or
.5 which substantially alters the energy efficiency of the ship and
includes any modifications that could cause the ship to exceed the
applicable required EEDI as set out in regulation 21 of this Annex.
25 "Bulk carrier" means a ship which is intended primarily to carry dry cargo in
bulk, including such types as ore carriers as defined in regulation 1 of chapter XII of
SOlAS 74 (as amended), but excluding combination carriers.
26 "Gas carrier" means a cargo ship constructed or adapted and used for the
carriage in bulk of any liquefied gas.
27 "Tanker" in relation to chapter 4 of this Annex means an oil tanker as
defined in regulation 1 of Annex I of the present Convention or a chemical tanker or